

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **HUD Housing Counseling** — call 1-800-569-4287
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ the case is set for April 1st at 9am at halden county court, housing division — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-04-01
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-04-01
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

□ the 14-day notice showed up taped to the door saying i owe \$350 (300 back rent + 50 late fee) and i have 14 days to pay it all or move out. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-03-17
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.

- **Triggering event:** notice posted on 2026-03-03
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

□ **Date of issuance: March 18, 2026 — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2026-03-25
- **Basis:** Minn. Stat. § 504B.321
- **Triggering event:** served on 2026-03-18
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota eviction hearings are typically held 7–14 days after the summons issues, so your hearing could be as early as this date. Estimated — confirm the exact date with the court or a lawyer. If this hearing window has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014).

△ my son marcus is 7 and has asthma and hes been coughing so much worse since like december

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2025-12-01
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake process has identified 14 possible legal issues in the state. The issues that have the most support are Eviction for Nonpayment of Rent (when a tenant is removed for not paying rent), Breach of Implied Warranty of Habitability (when a landlord fails to keep the rental unit livable), and Possible Retaliatory Eviction (when a tenant is evicted for taking action against the landlord, like reporting issues).

IMPORTANT: It looks like at least one deadline may have already passed. The case is scheduled for April 1st at 9 AM at Halden County Court, Housing Division (this date is calculated as 2026-04-01) [Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); check the hearing date printed on your summons or hearing notice]. Please confirm this right away, because missing deadlines can affect your case.

There are also safety concerns mentioned in this information; please refer to the safety resources below. The completeness of this analysis is 75%, and there are 17 follow-up questions listed below that could improve the assessment.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 20:44 UTC

Matter ID: 217

Run ID: 50

Completeness: 75%

General

| Potential Retaliatory Eviction

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R9wMn80MhrS9iqfKdQdH1A3>

ISSUE

The timing of the eviction notice, which came right after the tenant made complaints, might suggest that the landlord is retaliating. This could give the tenant possible reasons to defend against the eviction claims.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What evidence must be presented to support a claim of retaliatory eviction, and is there a filing requirement for asserting such a defense?

CONCLUSION

No elements defined

| Failure to Document Additional Payment for Pet

Claim Type: discovered | **Confidence:** 70%

ISSUE

This situation requires us to clarify if the payment was a valid part of the lease agreement (a contract between a landlord and tenant) and how it influences the overall claims for eviction (the process of legally removing a tenant) and unpaid rent.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Document Additional Payment for Pet' has not been explored with fact mappings

CONCLUSION

No elements defined

| Failure to Provide Notices or Receipts

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/R7cJxMJn6lAOHm1nNAxW9RP>

ISSUE

Not having a receipt might make it harder to understand what payments were actually made and could affect the landlord's (the person or company that rents out property) claims about unpaid rent.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Did the landlord provide the required notices or receipts as outlined in local landlord-tenant law, and what is the timeframe for disputing the lack of receipts?

CONCLUSION

No elements defined

| Negligence in Property Management

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/R7nqxxlAfhYqqSA2UQ5UxpX>

ISSUE

The slow response to repair requests about heat and mold might show that the property management company is not being careful in taking care of the property.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Negligence in Property Management' has not been explored with fact mappings

CONCLUSION

No elements defined

| Consequences of Lack of Legal Representation

Claim Type: discovered | **Confidence:** 40%

ISSUE

Landlord-tenant disputes can be complicated, so it's important to think about what might happen if a tenant faces eviction (being forced to leave the property) without a lawyer. This situation could affect the options available for the tenant to find a solution to their problem.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Consequences of Lack of Legal Representation' has not been explored with fact mappings

CONCLUSION

No elements defined

| Impact of Child's Health on Lease Agreement

Claim Type: discovered | **Confidence:** 40%

ISSUE

Because the minor's health is at risk, there may be extra legal protections regarding housing conditions that affect children.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Improper Rent Withholding Procedure

Claim Type: discovered | **Confidence:** 40%

ISSUE

Tenants can stop paying rent if their landlords haven't fixed problems, but there are specific legal steps they need to follow to officially inform their

landlords and keep records of the situation. It seems those steps may not have been followed in this case.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Improper Rent Withholding Procedure' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Landlord's Failure to Provide a Warrant of Habitability**: 40% confidence

state

Eviction for Nonpayment of Rent

Claim Type: identified | **Confidence:** 95%

FOLIO IRI: <https://folio.openlegalstandard.org/RhM0ab89J6bNADGZjt9GhX>

ISSUE

The tenant has gotten a 14-day notice about not paying rent and has a court date set. The reasons for eviction include not paying rent and

seriously breaking the lease agreement (the contract between the landlord and tenant).

RULE

No authorities identified for this claim.

APPLICATION

- **Landlord Tenant Relationship:** Supported (85% confidence) - The existence of a legally binding landlord-tenant relationship.
 - Fact: The landlord's name is Wendell. (85% match)
- **Notice of Nonpayment:** Supported (78% confidence) - Proper notice was given to the tenant regarding nonpayment of rent.
 - Fact: The court issued papers taped to the door stating a requirement to show up on April 1st. (78% match)
 - Fact: Failure to show up on April 1st may result in eviction. (71% match)
- **Failure to Pay Rent:** Supported (85% confidence) - The tenant failed to pay the rent after receiving the notice.
 - Fact: The tenant did not pay the \$350. (85% match)
- **Legal Grounds for Eviction:** Supported (85% confidence) - The landlord provided valid grounds for eviction compliant with state law.
 - Fact: The plaintiff alleges that the defendant owes \$1,200.00 in unpaid rent plus \$50.00 late fee, totaling \$1,250.00. (85% match)
 - Fact: The grounds for eviction include nonpayment of rent and material violation of lease terms. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the filing deadline for contesting the eviction notice and attending the scheduled court date?

CONCLUSION

4 of 4 elements supported (83% confidence)

| Eviction Claim

Claim Type: discovered | **Confidence:** 40%

Related to: Eviction for Nonpayment of Rent

FOLIO IRI: <https://folio.openlegalstandard.org/R87EsagydUYKkWMX3oyulrq>

ISSUE

Found through exploring the FOLIO ontology (a framework for organizing information) starting from Eviction for Nonpayment of Rent (level 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Landlord-Tenant Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Eviction for Nonpayment of Rent

FOLIO IRI: <https://folio.openlegalstandard.org/R97svnIdQhrkKZw6i3Nn88z>

ISSUE

Found through exploring the FOLIO ontology (a framework for organizing information) starting from Eviction for Nonpayment of Rent (level 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Landlord-Tenant Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

Breach of Implied Warranty of Habitability

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RBRosNDPt8cNUuRnoPqYufN>

ISSUE

The reported mold, heat outages, and conditions that are impacting the tenant's son's health suggest that there may be a failure to comply with the implied warranty of habitability (the legal requirement for rental properties to be safe and livable). This is especially important because mold can seriously affect health and safety.

RULE

No authorities identified for this claim.

APPLICATION

- **Failure to Repair:** Unsupported - The landlord failed to repair the defective condition within a reasonable timeframe.
- **Residential Tenancy:** Supported (85% confidence) - A tenant lives in a rented residential property.
 - Fact: Danika Osgood is the tenant. (85% match)
 - Fact: The tenant lives in Birchcrest Terrace unit 4. (85% match)
- **Defective Condition:** Supported (78% confidence) - A condition exists (like mold) that materially affects health or safety.
 - Fact: The tenant reported mold in the bathroom ceiling since October. (78% match)
 - Fact: The tenant believes the mold is causing Marcus' coughing. (64% match)
- **Landlord Notice:** Supported (64% confidence) - The landlord had notice of the defective condition or a reasonable opportunity to learn of it.
 - Fact: The tenant believes the mold is causing Marcus' coughing. (64% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Failure to Repair' is not yet supported by any facts
 - Element: Failure to Repair
- **Procedural Requirement** (Priority 50): What is the applicable statute of limitations for bringing a claim for breach of the implied warranty of habitability in this jurisdiction?

CONCLUSION

3 of 4 elements supported (57% confidence)

Breach of Implied Warranty of Habitability by Home Seller

Claim Type: discovered | **Confidence:** 30%

Related to: Breach of Implied Warranty of Habitability

ISSUE

Found by exploring the FOLIO ontology (a structured way of organizing information) from the Breach of Implied Warranty of Habitability (which means a landlord's failure to maintain a livable rental property) at a depth of 1.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings

CONCLUSION

No elements defined

Breach of Warranty

Claim Type: discovered | **Confidence:** 30%

Related to: Breach of Implied Warranty of Habitability

ISSUE

Found by exploring the FOLIO ontology (a structured way of organizing information) from the Breach of Implied Warranty of Habitability (which

means a landlord's failure to maintain a livable rental property) at a depth of 1.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Warranty' has not been explored with fact mappings

CONCLUSION

No elements defined

| Failure to Provide Heat

Claim Type: discovered | **Confidence:** 80%

ISSUE

The absence of heat during very cold weather, even after asking for repairs, brings up concerns under housing laws about the landlord's responsibility to keep the heating system working.

RULE

No authorities identified for this claim.

APPLICATION

- **Landlord Duty to Provide Heat:** Unsupported - The landlord is required by law to provide adequate heating to tenants.

- **Notice of Heating Issue:** Supported (85% confidence) - The tenant informed the landlord of the heating issue.
 - Fact: The heat went out from January 18 to January 23. (85% match)
 - Fact: Danika reported that the heat is out and it is 10 degrees outside on January 19, 2026. (85% match)
- **Failure to Address Heating Issue:** Supported (85% confidence) - The landlord failed to fix the heating problem in a timely manner.
 - Fact: A repair person finally came on January 23. (85% match)
- **Impact on Tenant:** Supported (85% confidence) - The lack of heat affected the tenant's living conditions, particularly concerning health (e.g., illness during the outage).
 - Fact: The outside temperature was 10 degrees during the heat outage. (85% match)
 - Fact: Marcus was sick during the heat outage. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 80): Element 'Landlord Duty to Provide Heat' is not yet supported by any facts
 - Element: Landlord Duty to Provide Heat
- **Procedural Requirement** (Priority 50): Is there a specific housing code or ordinance that outlines the requirements for heating that must be followed and is there a timeline for reporting violations?

CONCLUSION

3 of 4 elements supported (64% confidence)

More possible issues (show more)

- **Contract & Quasi-Contract Claims:** 30% confidence (related to Breach of Implied Warranty of Habitability)
- **Product Liability Claims:** 30% confidence (related to Breach of Implied Warranty of Habitability)
- **Property & Premises Liability Claims:** 30% confidence (related to Breach of Implied Warranty of Habitability)

Triage & Routing Recommendations

Primary Practice Area: Landlord-Tenant / Housing

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. Landlord-Tenant / Housing (Score: 0.49)

Landlord-Tenant / Housing practice area (50% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	50%
Jurisdiction Match	70%
Complexity Score	20%

2. General Civil (Score: 0.49)

General Civil practice area (50% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	50%
Jurisdiction Match	70%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Failure to Repair' is not yet supported by any facts
 - **Claim:** Breach of Implied Warranty of Habitability
 - **Element:** Failure to Repair
- [] **[URGENT]** Element 'Landlord Duty to Provide Heat' is not yet supported by any facts
 - **Claim:** Failure to Provide Heat
 - **Element:** Landlord Duty to Provide Heat

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: the case is set for April 1st at 9am at halden county court, housing division (estimated 2026-04-01; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.). **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate

the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

- **Deadline:** 2026-04-01

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: the 14-day notice showed up taped to the door saying i owe \$350 (300 back rent + 50 late fee) and i have 14 days to pay it all or move out. (estimated 2026-03-17; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

- **Deadline:** 2026-03-17

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: Date of issuance: March 18, 2026 (estimated 2026-03-25; Minn. Stat. § 504B.321). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota eviction hearings are typically held 7–14 days after the summons issues, so your hearing could be as early as this date. Estimated — confirm the exact date with the court or a lawyer. If this hearing window has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate

the judgment and about expungement of the eviction record (Minn. Stat. § 484.014).

◦ **Deadline:** 2026-03-25

- [] **[URGENT]** You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn. Stat. § 504B.285/§ 504B.441; other states have an equivalent. How soon after your report did the eviction notice arrive? [Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441 (retaliation defense/penalties)]
- [] **[URGENT]** You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the court about depositing your rent instead of just holding it back? [Authority: Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]
- [] **[URGENT]** You said the court papers (summons) were just TAPED to your door. In Minnesota a summons can be posted like that only if the landlord first tried to hand it to you in person and could not find you, and then also mailed you a copy (Minn. Stat. § 504B.331). If those steps were skipped, the service may be defective and can be challenged. Were you ever handed the papers in person, or did anyone mail you a copy? [Authority: Minn. Stat. § 504B.331 (eviction summons service; posting/'nail-and-mail' allowed only after diligent attempts at personal service and if the tenant cannot be found, plus mailing)]
- [] **[URGENT]** You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states

have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]

- [] **[URGENT]** Your notice appears to give a vague reason (like a 'material lease violation' box with no specifics). A notice usually must state the specific grounds so you can respond — a vague or defective notice can be challenged. What exactly does the notice say, and does it list any specific violation, amount, or cure period? [Authority: State eviction-notice content requirements (e.g., Minn. Stat. § 504B.321; the notice must state the specific grounds)]
- [] **[IMPORTANT]** Potential claim 'Landlord-Tenant Claims' has not been explored with fact mappings
 - **Claim:** Landlord-Tenant Claims
- [] **[IMPORTANT]** Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
 - **Claim:** Breach of Implied Warranty of Habitability by Home Seller
- [] **[IMPORTANT]** Potential claim 'Breach of Warranty' has not been explored with fact mappings
 - **Claim:** Breach of Warranty
- [] **[IMPORTANT]** Potential claim 'Product Liability Claims' has not been explored with fact mappings
 - **Claim:** Product Liability Claims
- [] **[IMPORTANT]** Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
 - **Claim:** Contract & Quasi-Contract Claims

- [] **[IMPORTANT]** Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
 - **Claim:** Property & Premises Liability Claims
- [] **[IMPORTANT]** Potential claim 'Negligence in Property Management' has not been explored with fact mappings
 - **Claim:** Negligence in Property Management
- [] **[IMPORTANT]** Potential claim 'Landlord's Failure to Provide a Warrant of Habitability' has not been explored with fact mappings
 - **Claim:** Landlord's Failure to Provide a Warrant of Habitability
- [] **[IMPORTANT]** Potential claim 'Improper Rent Withholding Procedure' has not been explored with fact mappings
 - **Claim:** Improper Rent Withholding Procedure
- [] **[IMPORTANT]** Potential claim 'Failure to Document Additional Payment for Pet' has not been explored with fact mappings
 - **Claim:** Failure to Document Additional Payment for Pet
- [] **[IMPORTANT]** Potential claim 'Consequences of Lack of Legal Representation' has not been explored with fact mappings
 - **Claim:** Consequences of Lack of Legal Representation
- [] **[IMPORTANT]** What is the filing deadline for contesting the eviction notice and attending the scheduled court date?
 - **Claim:** Eviction for Nonpayment of Rent
- [] **[IMPORTANT]** What is the applicable statute of limitations for bringing a claim for breach of the implied warranty of habitability in this jurisdiction?
 - **Claim:** Breach of Implied Warranty of Habitability

- [] **[IMPORTANT]** Is there a specific housing code or ordinance that outlines the requirements for heating that must be followed and is there a timeline for reporting violations?
 - **Claim:** Failure to Provide Heat
- [] **[IMPORTANT]** What evidence must be presented to support a claim of retaliatory eviction, and is there a filing requirement for asserting such a defense?
 - **Claim:** Potential Retaliatory Eviction
- [] **[IMPORTANT]** Did the landlord provide the required notices or receipts as outlined in local landlord-tenant law, and what is the timeframe for disputing the lack of receipts?
 - **Claim:** Failure to Provide Notices or Receipts

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

Breach of Implied Warranty of Habitability

- **Unsupported Element** (Priority 85): Element 'Failure to Repair' is not yet supported by any facts
 - Element: Failure to Repair
 - See Action Item #1
- **Procedural Requirement** (Priority 50): What is the applicable statute of limitations for bringing a claim for breach of the implied warranty of habitability in this jurisdiction?
 - See Action Item #23

Breach of Implied Warranty of Habitability by Home Seller

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
 - See Action Item #12

Breach of Warranty

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Warranty' has not been explored with fact mappings
 - See Action Item #13

Consequences of Lack of Legal Representation

- **Unexplored Claim** (Priority 50): Potential claim 'Consequences of Lack of Legal Representation' has not been explored with fact mappings
 - See Action Item #21

Contract & Quasi-Contract Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
 - See Action Item #15

Eviction for Nonpayment of Rent

- **Procedural Requirement** (Priority 50): What is the filing deadline for contesting the eviction notice and attending the scheduled court date?
 - See Action Item #22

Failure to Document Additional Payment for Pet

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Document Additional Payment for Pet' has not been explored with fact mappings
 - See Action Item #20

Failure to Provide Heat

- **Unsupported Element** (Priority 80): Element 'Landlord Duty to Provide Heat' is not yet supported by any facts
 - Element: Landlord Duty to Provide Heat
 - See Action Item #2
- **Procedural Requirement** (Priority 50): Is there a specific housing code or ordinance that outlines the requirements for heating that must be followed and is there a timeline for reporting violations?
 - See Action Item #24

Failure to Provide Notices or Receipts

- **Procedural Requirement** (Priority 50): Did the landlord provide the required notices or receipts as outlined in local landlord-tenant law, and what is the timeframe for disputing the lack of receipts?
 - See Action Item #26

Improper Rent Withholding Procedure

- **Unexplored Claim** (Priority 50): Potential claim 'Improper Rent Withholding Procedure' has not been explored with fact mappings
 - See Action Item #19

Landlord's Failure to Provide a Warrant of Habitability

- **Unexplored Claim** (Priority 50): Potential claim 'Landlord's Failure to Provide a Warrant of Habitability' has not been explored with fact mappings
 - See Action Item #18

Landlord-Tenant Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Landlord-Tenant Claims' has not been explored with fact mappings
 - See Action Item #11

Negligence in Property Management

- **Unexplored Claim** (Priority 50): Potential claim 'Negligence in Property Management' has not been explored with fact mappings
 - See Action Item #17

Potential Retaliatory Eviction

- **Procedural Requirement** (Priority 50): What evidence must be presented to support a claim of retaliatory eviction, and is there a filing requirement for asserting such a defense?
 - See Action Item #25

Product Liability Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Product Liability Claims' has not been explored with fact mappings
 - See Action Item #14

Property & Premises Liability Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
 - See Action Item #16

Uncategorized

- **Procedural Requirement** (Priority 84): You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn. Stat. § 504B.285/§ 504B.441; other states have an equivalent. How soon after your report did the eviction notice arrive? [Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441 (retaliation defense/penalties)]
 - See Action Item #6
- **Procedural Requirement** (Priority 82): You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]
 - See Action Item #9
- **Procedural Requirement** (Priority 84): You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the

court about depositing your rent instead of just holding it back?
[Authority: Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]

◦ See Action Item #7

- **Procedural Requirement** (Priority 82): Your notice appears to give a vague reason (like a 'material lease violation' box with no specifics). A notice usually must state the specific grounds so you can respond — a vague or defective notice can be challenged. What exactly does the notice say, and does it list any specific violation, amount, or cure period? [Authority: State eviction-notice content requirements (e.g., Minn. Stat. § 504B.321; the notice must state the specific grounds)]

◦ See Action Item #10

- **Procedural Requirement** (Priority 84): You said the court papers (summons) were just TAPED to your door. In Minnesota a summons can be posted like that only if the landlord first tried to hand it to you in person and could not find you, and then also mailed you a copy (Minn. Stat. § 504B.331). If those steps were skipped, the service may be defective and can be challenged. Were you ever handed the papers in person, or did anyone mail you a copy? [Authority: Minn. Stat. § 504B.331 (eviction summons service; posting/'nail-and-mail' allowed only after diligent attempts at personal service and if the tenant cannot be found, plus mailing)]

◦ See Action Item #8

Open Questions

1. How soon after you reported problems to the city or received an inspection did you get the eviction notice?
2. Were you ever handed the court papers in person or received a mailed copy?

3. What does the notice say? Does it mention any specific violations or give you a timeframe to fix them?
4. Have you talked to the court about the possibility of depositing your rent rather than just holding it back?
5. How much did you pay for the pet deposit, and do you have any documents or messages that show this payment?
6. Can you tell me more about the issues you've experienced with heating in your home?
7. Have you experienced any ongoing issues with your landlord or the property that you haven't discussed yet?
8. Can you tell me about any repairs that were promised but never completed by the landlord?
9. How soon after you reported the problems did you receive the eviction notice?
10. Were you ever handed the court papers in person, or did anyone mail you a copy?
11. What exactly does the eviction notice say? Does it list any specific violation or amount?
12. What is the filing deadline for contesting the eviction notice and attending the scheduled court date?
13. Have you asked the court about the legal way to deposit your rent instead of holding it back?
14. What issues were you reporting to the landlord or the city regarding repairs?
15. Did your landlord provide you with heat during the colder months? Were there any issues?
16. Do you have any additional agreements with your landlord that haven't been documented?
17. Can you share any issues you've had with deposits or other payments made to the landlord?